

## CHAPTER 14

An Act to consolidate certain enactments empowering the Postmaster General to regulate the use of telegraphs and the general conduct of telegraphic business.

[29th March, 1962]

**B**E it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The Postmaster General may by statutory instrument (which shall be subject to annulment in pursuance of a resolution of either House of Parliament) make regulations for determining, or providing for determining, the conditions on which, and purposes for which, the use of any telegraphs will be permitted and for the general conduct of telegraphic business and in particular, but without prejudice to the generality of the foregoing words, for fixing, or providing for fixing, the sums to be from time to time paid—

Power of  
Postmaster  
General to  
regulate use of  
telegraphs, &c.

- (a) on account of the transmission of telegrams; and
- (b) on account of services rendered in connection therewith; and
- (c) on account of the use of any telegraphs by any person.

(2) Regulations under the foregoing subsection may fix, or provide for fixing, special terms, conditions or rates on or at which telegraphs may be used by all persons in any specified manner or at any specified time or for any specified class of message, and in particular, but without prejudice to the generality of the foregoing words, may—

- (a) provide that priority over all other messages, except messages on Her Majesty's service having priority under section forty-eight of the Telegraph Act, 1863, shall be given to messages transmitted at special rates fixed by or under the regulations;
- (b) fix, or provide for fixing, special rates for the transmission of messages in connection with which special services (including the delivery of a message on a special ornamental form and in a special envelope) are rendered.

(3) The charge for the transmission of a telegram shall cover the cost of delivery within such limits and by such means as may be prescribed by or under regulations under subsection (1) of this section.

Short title,  
citation,  
interpretation,  
repeal, saving,  
extent and  
commence-  
ment.

2.—(1) This Act may be cited as the Telegraph Act, 1962, and the Telegraph Acts, 1863 to 1892, the Telegraph Act, 1899, the Telegraph (Construction) Act, 1908, the Telegraph (Arbitration) Act, 1909, the Telegraph (Construction) Act, 1911, the Telegraph (Construction) Act, 1916, and this Act may be cited together as the Telegraph Acts, 1863 to 1962.

(2) In this Act the expressions “telegram” and “telegraph” have the meanings assigned to them respectively by section three of the Telegraph Act, 1869.

(3) The enactments mentioned in the first and second columns of the Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule; but this repeal shall not invalidate any regulations under section two of the Telegraph Act, 1885, which are in force immediately before the commencement of this Act and any such regulations shall, in so far as they could be made under this Act, have effect as if they had been so made.

(4) It is hereby declared that this Act extends to Northern Ireland.

(5) This Act shall extend to the Isle of Man and the Channel Islands.

(6) This Act shall come into operation at the expiration of one month beginning with the day on which it is passed.

## SCHEDULE

### ENACTMENTS REPEALED

| Session and Chapter       | Short Title                              | Extent of Repeal                                                                                                                                                                                                                                                                                                                                                                                                            |
|---------------------------|------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 48 & 49 Vict.<br>c. 58.   | The Telegraph Act, 1885.                 | The whole Act.                                                                                                                                                                                                                                                                                                                                                                                                              |
| 3 & 4 Geo. 6.<br>c. 25.   | The Post Office and Telegraph Act, 1940. | The whole Act.                                                                                                                                                                                                                                                                                                                                                                                                              |
| 2 & 3 Eliz. 2.<br>c. 28.  | The Telegraph Act, 1954.                 | The whole Act.                                                                                                                                                                                                                                                                                                                                                                                                              |
| 9 & 10 Eliz. 2.<br>c. 15. | The Post Office Act, 1961.               | In section sixteen, in subsection (2), the words from “section two of the Telegraph Act, 1885” to “transmission of telegrams”.<br>In section seventeen, the words “or regulations under section two of the Telegraph Act, 1885”.<br>In section eighteen, paragraphs (e) and (f).<br>In the Schedule, the entries relating to the Telegraph Act, 1885, the Post Office and Telegraph Act, 1940, and the Telegraph Act, 1954. |

*Table of Statutes referred to in this Act*

| Short Title                               | Session and Chapter   |
|-------------------------------------------|-----------------------|
| Telegraph Act, 1863 ... ..                | 26 & 27 Vict. c. 112. |
| Telegraph Act, 1869 ... ..                | 32 & 33 Vict. c. 73.  |
| Telegraph Act, 1885 ... ..                | 48 & 49 Vict. c. 58.  |
| Telegraph Act, 1899 ... ..                | 62 & 63 Vict. c. 38.  |
| Telegraph (Construction) Act, 1908 ... .. | 8 Edw. 7. c. 33.      |
| Telegraph (Arbitration) Act, 1909 ... ..  | 9 Edw. 7. c. 20.      |
| Telegraph (Construction) Act, 1911 ... .. | 1 & 2 Geo. 5. c. 39.  |
| Telegraph (Construction) Act, 1916... ..  | 6 & 7 Geo. 5. c. 40.  |

## CHAPTER 15

### *Criminal Justice Administration Act, 1962*

#### ARRANGEMENT OF SECTIONS

##### *Courts and judicial officers*

##### Section

1. Additional judges of High Court.
2. Assistant clerks of assize.
3. Sheriff of Hallamshire.
4. County and borough sessions.
5. Elected chairman of county sessions.
6. London sessions.
7. Appointment of deputy recorders and assistant recorders.
8. Remuneration of recorders, chairmen of county sessions and their deputies and assistants.
9. Removal of recorder and others.
10. Remuneration of certain clerks of the peace.
11. Qualifications of clerks at certain stipendiary courts.

##### *Criminal procedure*

12. Extension of jurisdiction of quarter sessions and magistrates' courts.
13. Power to discontinue summary trial of indictable offence and resume committal proceedings.
14. Committal to assizes or quarter sessions.